

Second Cause of Action: Equal Protection (42 U.S.C. § 1983)

The TAC, when read as a whole, alleges that similarly situated property owners of other races ordinarily received notice and an opportunity to correct the newly identified offending condition, but that employee Davila denied Petitioner that opportunity because of his race. Whether Petitioner can identify similarly situated comparators and prove intent cannot be resolved on demurrer.

OVERRULE

Third Cause of Action: Municipal Failure to Train (42 U.S.C. § 1983)

The TAC alleges that the City failed to train Palacios to consider mitigation or failed to provide an appropriate order form. (TAC, Para.26.) The TAC does not, however, identify the City's training practices, facts showing that final policymakers knew of and disregarded a pattern of similar violations, or circumstances making the asserted constitutional consequence patently obvious. The TAC's language that inadequate training "should have been obvious (TAC, Para. 26) does not supply the missing facts. The allegations are insufficient to allege the required *deliberate indifference* and *causation*.

SUSTAIN with 30 days leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2503747	TONG vs CITY OF RIVERSIDE, A CALIFORNIA CHARTER CITY AND MUNICIPAL CORPORATION	MOTION TO STRIKE 3RD AMENDED PETITION

Tentative Ruling:

DENY

While it is true that the audio recording delay occurred *after* the hearing, Paragraph 15 supplies the factual basis for the First Cause of Action and also provides procedural context for the writ. For Paragraph 17, the tenant's obstruction and Petitioner's offer of replacement housing to the tenant may be relevant to Petitioner's argument that the hearing officer failed to consider Petitioner's good-faith compliance efforts and other mitigation in assessing the penalty.